

Smt. Rekha W/O. Ningappa Kolala vs Sri. Ningappa S/O. Shivalingappa ... on 19 January, 2023

Author: M.G.S. Kamal

Bench: M.G.S. Kamal

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CP No. 100177 of 2022

IN THE HIGH COURT OF KARNATAKA, DHARWAD BENCH

DATED THIS THE 19TH DAY OF JANUARY, 2023

BEFORE

THE HON'BLE MR JUSTICE M.G.S. KAMAL

CIVIL PETITION NO. 100177 OF 2022

BETWEEN:

SMT. REKHA W/O. NINGAPPA KOLALA,
AGE: 34 YEARS, OCC. HOMEMAKER,
R/O. HULIKATTI, TQ. SHIGGAON, DIST. HAVERI.
NOW AT: C/O. EERAPPA UDACHAPPA
DOLLESHWARA,
R/O. KATUR, TQ. MUNDGOD,
DIST. KARWAR-581346.

...PETITIONER

(BY SRI. VISHWANATH S.BICHAGATTI, ADVOCATE)

AND:

SRI. NINGAPPA S/O. SHIVALINGAPPA KOLALA,
AGE: 35 YEARS, OCC. BILL COLLECTOR/
AGRICULTURE,
R/O. HULIKATTI, TQ. SHIGGAON,
DIST. HAVERI-581203.

...RESPONDENT

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by ROHAN

(RESPONDENT - SERVED)

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THIS CIVIL PETITION IS FILED UNDER SECTION 24 OF CPC, PRAYING TO PASS AN ORDER OF TRANSFERRING M C NO. 72/2021 PENDING ON THE FILE OF THE HON'BLE SENIOR CIVIL JUDGE AND JMFC COURT SHIGGAON TO CIVIL JUDGE AND PRINCIPAL JMFC COURT MUNDAGOD.

THIS PETITION COMING ON FOR ADMISSION, THIS DAY, THE COURT MADE THE FOLLOWING:

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CP No. 100177 of 2022

ORDER

This civil petition is filed by the petitioner-wife under Section 24 of the Code of Civil Procedure seeking to transfer M.C.No.72/2021 pending on the file of the Senior Civil Judge and JMFC Court, Shiggaon to the Civil Judge and Principal JMFC Court, Mundagod.

2. Brief facts of the case are that, the marriage of the petitioner and the respondent was solemnized on 03.06.2013 at Hulikatti village, Shiggaon in accordance with the customs and rituals of Hindu tradition. Two children were born of which one baby died within 15 days of its birth.

3. That the petitioner was subjected to physical and mental harassment. That the petitioner was driven out of the matrimonial house by the respondent. That the petitioner has initiated proceedings under Domestic Violence Act, 2005 in Crl.Misc.No.91/2019 before the Civil Judge and JMFC, Mundgod wherein the respondent is directed to pay maintenance amount to the petitioners (wife and the minor child).

4. That the petitioner is presently residing at Mundgod at the address shown in the cause title along with her parents. That the petitioner apprehends the serious threat to her life in the event of her visiting to the place of the matrimonial home to contest the divorce proceedings. That the petitioner is the lady dependent and sheltered at her parents' house along with her minor son with hardly any financial support except maintenance allowed by the Court. That the respondent being employed as Bill collector at Gram Panchayat at Hotanahalli is not taking care of the maintenance of the petitioner and his son. That her financial inability and the physical inconvenience to travel along leaving behind the child to contest the proceedings all alone would cause much hardship and

inconvenience upon the petitioner. The traveling from Mundgod to Shiggaon for attending the case on every date of hearing would cause great hardship on the petitioner. Therefore, she is not in a position to travel to Shiggaon to attend the case leaving her child. This being the fact, the petition filed by respondent husband under Section 13(1)(ia)(ib) of Hindu Marriage Act, 1955 at Shiggaon is required to be transferred to Mundagod.

5. The said petition is resisted by learned counsel for the respondent.

6. Heard and perused the records.

7. It is not in dispute that, the petitioner's marriage with respondent was solemnized on 03.06.2013 at Shiggaon. It is not in dispute that, the petitioner presently residing at the address shown in the cause title. It is not in dispute that, the respondent has initiated proceedings in M.C.No.72/2021 on the file of Senior Civil Judge and JMFC Court, Shiggaon.

8. Section 19 of the Hindu Marriage Act, 1955 mandates amongst other that the petition for divorce be filed either at the place where marriage has taken place or the place where the respondent is residing at the time of filing of petition.

9. In the instant case, the petitioner being wife, who is respondent in M.C.No.72/2021 filed by the respondent herein, at Mundagod. Even for the purpose of jurisdiction, under Section 19 of the Hindu Marriage Act, 1955 as noted above, petition is required to be filed before the Court at Mundagod. Besides the contention that the petitioner would be put to severe financial hardship and inconvenience in traveling in order to prosecute the matter effectively deserves to be accepted.

10. In that view of the matter, the petition is hereby allowed. M.C.No.72/2021 on the file of the Senior Civil Judge and JMFC Court, Shiggaon is directed to be withdrawn and transferred to the Civil Judge and Principal JMFC Court, Mundagod.

Sd/-

JUDGE RH